

22STCV16348 22STCV16348

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Case Number: 22STCV16348 Hearing Date: July 15, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday, July 15, 2026

Calendar No.

PROCEEDINGS

Swati

Vutukiri v. Hollywood Park Land Co., LLC, et al.

22STCV16348

1. Apex Security Group, Inc.'s Motion for Protective
Order Against the Deposition of Defendant Apex Security Group, Inc.'s Person
Most Qualified and Request for Sanctions

2. Apex Security Group, Inc.'s Motion for Summary
Judgment, or in the Alternative for Summary Adjudication

3. Hollywood Park Management Company, LLC, et al.'s
Motion for Summary Judgment

TENTATIVE RULING

Apex

Security Group, Inc.'s Motion for Protective Order Against the Deposition of Defendant Apex Security Group, Inc.'s Person Most Qualified and Request for Sanctions is continued.

Apex

Security Group, Inc.'s Motion for Summary Judgment, or in the Alternative for Summary Adjudication is continued.

Hollywood Park Management Company, LLC, et al.'s Motion for Summary Judgment is continued.

Background

Plaintiff filed the Complaint on May 17, 2022.

Plaintiff filed the First Amended Complaint on July 28, 2022. Plaintiff alleges the following facts. Plaintiff attended a Los Angeles Rams football game on September 26, 2021 at SoFi Stadium. An unknown patron fell on top of Plaintiff causing Plaintiff injuries. Plaintiff alleges the following causes of action: 1. Negligence; 2. Premises Liability.

Motion for Protective Order

The Court is authorized to limit discovery through a protective order.

The order may be granted on the motion of any party or other person affected by the discovery sought. CCP §§

2017.020(a), 2019.020(b), 2019.030(a). A

protective order may be obtained to limit the frequency or extent of use of any discovery method on any of the following grounds: (1)

"The discovery sought is unreasonably cumulative or duplicative ...; (2)

"(The information) is obtainable from some other source that is more convenient, less burdensome or less expensive;

(3) "The selected method of

discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation." CCP §

2019.030(a)(1)-(2).

states:

“(a) Before, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

(1) That the deposition not be taken at all.

(2) That the deposition be taken at a different time.

(3) That a video recording of the deposition testimony of a treating or consulting physician or of any expert witness, intended for possible use at trial under subdivision (d) of Section 2025.620, be postponed until the moving party has had an adequate opportunity to prepare, by discovery deposition of the deponent, or other means, for cross-examination.

(4) That the deposition be taken at a place other than that specified in the deposition notice, if it is within a distance permitted by Sections 2025.250 and 2025.260.

(5) That the deposition be taken only on certain specified terms and conditions.

(6) That the deponent's testimony be taken by written, instead of oral, examination.

(7) That the method of discovery be interrogatories to a party instead of an oral deposition.

(8) That the testimony be
recorded in a manner different from that specified in the deposition notice.

(9) That certain matters
not be inquired into.

(10) That the scope of the
examination be limited to certain matters.

(11) That all or certain of
the writings or tangible things designated in the deposition notice not be
produced, inspected, copied, tested, or sampled, or that conditions be set for
the production of electronically stored information designated in the deposition
notice.

(12) That designated
persons, other than the parties to the action and their officers and counsel,
be excluded from attending the deposition.

(13) That a trade secret or
other confidential research, development, or commercial information not be
disclosed or be disclosed only to specified persons or only in a specified way.

(14) That the parties
simultaneously file specified documents enclosed in sealed envelopes to be
opened as directed by the court.

(15) That the deposition be
sealed and thereafter opened only on order of the court.

(16) That examination of
the deponent be terminated. If an order terminates the examination, the
deposition shall not thereafter be resumed, except on order of the court."

Meet and
Confer

Defendant set forth a meet
and confer declaration in substantial compliance with CCP § 2025.420(a). (Declaration, Katie J. Brinson, ¶¶ 9-32).

Motion for
Protective Order

Defendant moves for a protective order prohibiting Plaintiff "from engaging in improper discovery practices regarding the deposition of Apex's Person Most Qualified. Defendant bases its Motion on the following grounds:

1. The discovery sought is not relevant to the subject matter involved in the pending action and is not reasonably calculated to lead to the discovery of admissible evidence.
2. Pursuant to Code of Civil Procedure section 2017.020 because the burden, expense and intrusiveness of the discovery sought clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.
3. Pursuant to Code of Civil Procedure section 2025.420(b), and upon a showing of good cause, Defendant requires a Court order to protect it from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense regarding Plaintiff's Notices of Deposition of Apex's Person Most Qualified." (Notice of Motion, page 2, lines 5-17). Defendant also seeks monetary sanctions against Plaintiff and Plaintiff's counsel in the sum of \$9,390.00.

Defendant argues that, in Plaintiff's latest Fifth Amended Notice of Deposition, Plaintiff set forth 51 matters of examination that were stated in the form of interrogatories rather than categories of examination. Defendant argues that these alleged "categories" are unduly burdensome, duplicative, and harassing. Defendant also argues that the Notice contains 25 requests for production of documents that are also unduly burdensome, harassing, and duplicative of previous requests for production of documents. Defendant also points to categories and requests that seek information about unruly or intoxicated patrons and argues that there is no evidence that the incident occurred due to the behavior of unruly or intoxicated patrons.

In Plaintiff's Opposition, Plaintiff argues that Defendant is unreasonably attempting to limit the scope of the deposition to only three issues: duty, contract, and training. Plaintiff

contends that the deposition seeks to also attempt to obtain information as to what Defendant's agents did or did not do on the date of the incident including what they observed, what they were assigned to do, the procedures in place regarding crowd control, the existence of any warnings, and Defendant's actions to preserve evidence after the incident.

In Defendant's Reply, Defendant

states that the parties were scheduled to conduct an IDC on June 30, 2026 but the IDC was taken off calendar. Defendant proposes that the IDC be rescheduled before the motion is ruled upon.

The Court agrees that an

IDC would be appropriate as an IDC may resolve the dispute completely, or, at a minimum, provide significant guidance as to how the categories of testimony and the requests for production of documents may be narrowed. The Court will discuss with the parties a convenient date and time for the IDC. Currently, there is a date of August 26, 2026 on calendar for a post mediation and status of settlement status conference. Perhaps that date can also be utilized for the IDC. The IDC date will also be utilized as a Motion for Protective Order Setting Date and the Motion for Protective Order will be re-set approximately 30 days after the IDC. Should the IDC not resolve the dispute completely, the moving party is ordered to provide a status update at least five court days before the hearing date of the motion as to any disputes that remain outstanding.

Finally, upon review of the

motion, the Court notes that moving party failed to attach the relevant Fifth Notice of Deposition setting forth all the alleged disputed categories and requests for production of documents. The Court cannot review the merits of the motion, nor conduct a meaningful IDC without reviewing this document. Defendant is ordered to file the Fifth Notice of Deposition at least seven court days prior to the IDC date.

Motions for

Summary Judgment/Adjudication

The purpose of a motion for summary judgment or

summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar

v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2). “If the plaintiff cannot do so, summary judgment should be granted.” Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

“A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Apex Security

Defendant moves for summary judgment, or, in the alternative summary adjudication of issues. The motion is made on the grounds that there is no triable issue of material fact and Defendant is entitled to judgment.

In the Notice of Motion, Defendant identifies the following issues sought to be adjudicated

"1. Plaintiff's claim for negligence fails as a matter of law; and

2. Plaintiff's claim for premises liability fails as a matter of law." (Notice of Motion, p. 2, lines 9-10).

Hollywood Park Management Company, LLC and Stadco LA, LLC

Defendants move for an order granting summary judgment pursuant to CCP § 437c as to the operative Complaint of Plaintiff. Defendant argues that "Plaintiff testified that she does not know how the incident happened, including who or what hit her. Plaintiff testified that she does not know what caused the person to hit her, including the existence of any dangerous condition. Plaintiff therefore cannot demonstrate that any dangerous condition existed, that Defendants had notice of it, or that Defendants caused it." (Memorandum of Points and Authorities, p. 3, lines 10-13).

Code Civ. Proc., § 437c(h) states: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just. The application to continue the motion to obtain necessary discovery may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due."

In Plaintiff's oppositions, Plaintiff's counsel set forth declarations stating that essential facts exist to justify the oppositions but cannot be presented at this time because crucial discovery remains outstanding. (Decl., Michael Dufour, dated 12/1/25, ¶¶ 81-84) (Decl., Michael Dufour, dated 12/4/25, ¶¶ 68-72). The Court is mindful and concerned that these declarations were

executed more than seven months prior to the current date. Significant discovery should have been undertaken during this time. However, judging by the fact that a motion for protective order related to the deposition of Apex Security Group, Inc.'s PMQ is on calendar this date, it is clear that essential discovery still remains to be completed in this action.

Therefore, Apex Security Group, Inc.'s Motion for Summary Judgment, or in the Alternative for Summary Adjudication and Hollywood Park Management Company, LLC, et al.'s Motion for Summary Judgment are continued to October 13, 2026. Any supplemental opposition and supplemental reply are to be filed and served pursuant to the time frames set forth in CCP § 437c(b).

Plaintiff is ordered to give notice of this ruling.